

GENERAL ASSEMBLY OF NORTH CAROLINA
SESSION 2025

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SENATE BILL 638

Short Title: Fair Maps Act.

(Public)

Sponsors: Senators Bradley and Everitt (Primary Sponsors).

Referred to: Rules and Operations of the Senate

March 26, 2025

A BILL TO BE ENTITLED
AN ACT TO AMEND THE NORTH CAROLINA CONSTITUTION TO PROVIDE FOR AN
INDEPENDENT REDISTRICTING PROCESS, TO ESTABLISH THE NORTH
CAROLINA CITIZENS REDISTRICTING COMMISSION, AND TO MAKE
CONFORMING CHANGES TO THE GENERAL STATUTES.

The General Assembly of North Carolina enacts:

PART I. INDEPENDENT REDISTRICTING PROCESS

SECTION 1.(a) Section 3 of Article II of the North Carolina Constitution reads as
rewritten:

"Sec. 3. Senate districts; apportionment of Senators.

The Senators shall be elected from districts. ~~The General Assembly, at the first regular session
convening after the return of every decennial census of population taken by order of Congress,~~
~~shall revise the senate districts and the apportionment of Senators among those districts, subject~~
~~to the following requirements:~~ Assembly shall establish an independent process to revise the
senate districts and the apportionment of Senators among those districts pursuant to Section 25
of this Article.

(1) ~~Each Senator shall represent, as nearly as may be, an equal number of inhabitants, the~~
~~number of inhabitants that each Senator represents being determined for this purpose by dividing~~
~~the population of the district that he represents by the number of Senators apportioned to that~~
~~district;~~

(2) ~~Each senate district shall at all times consist of contiguous territory;~~

(3) ~~No county shall be divided in the formation of a senate district;~~

(4) ~~When established, the senate districts and the apportionment of Senators shall remain~~
~~unaltered until the return of another decennial census of population taken by order of Congress."~~

SECTION 1.(b) Section 5 of Article II of the North Carolina Constitution reads as
rewritten:

"Sec. 5. Representative districts; apportionment of Representatives.

The Representatives shall be elected from districts. ~~The General Assembly, at the first regular
session convening after the return of every decennial census of population taken by order of~~
~~Congress, shall revise the representative districts and the apportionment of Representatives~~
~~among those districts, subject to the following requirements:~~ Assembly shall establish an
independent process to revise the representative districts and the apportionment of
Representatives among those districts pursuant to Section 25 of this Article.

(1) ~~Each Representative shall represent, as nearly as may be, an equal number of~~
~~inhabitants, the number of inhabitants that each Representative represents being determined for~~



1 this purpose by dividing the population of the district that he represents by the number of
2 Representatives apportioned to that district;

3 (2) ~~Each representative district shall at all times consist of contiguous territory;~~

4 (3) ~~No county shall be divided in the formation of a representative district;~~

5 (4) ~~When established, the representative districts and the apportionment of~~
6 ~~Representatives shall remain unaltered until the return of another decennial census of population~~
7 ~~taken by order of Congress."~~

8 **SECTION 1.(c)** Article II of the North Carolina Constitution is amended by adding
9 a new section to read:

10 **"Sec. 25. Redistricting.**

11 The General Assembly shall establish by law an independent process to revise electoral
12 districts for Congress and the General Assembly after the return of every decennial census of
13 population taken by order of Congress. The process shall meet at least all of the following
14 requirements:

15 (1) Neither the General Assembly nor the Governor shall have any role in revising
16 electoral districts for the General Assembly or the House of Representatives of the United States
17 Congress.

18 (2) Each member of the Senate and House of Representatives of the General Assembly
19 and the House of Representatives of the United States Congress shall represent, as nearly as may
20 be, an equal number of inhabitants.

21 (3) Each electoral district shall at all times consist of contiguous territory.

22 (4) When established, the electoral districts for the Senate and House of Representatives
23 of the General Assembly shall remain unaltered until the return of another decennial census of
24 population taken by order of Congress.

25 (5) Electoral districts adopted pursuant to the process shall have the force and effect of
26 acts of the General Assembly."

27 **SECTION 1.(d)** Subsection (5) of Section 22 of Article II of the North Carolina
28 Constitution reads as rewritten:

29 "(5) ~~Other exceptions.~~ Appointments to office. Every bill:

30 (a) ~~In bill in which the General Assembly makes an appointment or appointments~~
31 ~~to public office and which contains no other matter;~~

32 (b) ~~Revising the senate districts and the apportionment of Senators among those~~
33 ~~districts and containing no other matter;~~

34 (c) ~~Revising the representative districts and the apportionment of Representatives~~
35 ~~among those districts and containing no other matter; or~~

36 (d) ~~Revising the districts for the election of members of the House of~~
37 ~~Representatives of the Congress of the United States and the apportionment~~
38 ~~of Representatives among those districts and containing no other matter;~~
39 matter shall be read three times in each house before it becomes law and shall
40 be signed by the presiding officers of both houses."

41 **SECTION 1.(e)** The amendments set out in subsections (a), (b), (c), and (d) of this
42 section shall be submitted to the qualified voters of the State at the general election in November
43 2026, which election shall be conducted under the laws then governing elections in the State.
44 Ballots, voting systems, or both may be used in accordance with Chapter 163 of the General
45 Statutes. The question to be used in the voting systems and ballots shall be:

46 "[] FOR [] AGAINST

47 A constitutional amendment providing for an independent redistricting process for
48 electoral districts for Congress and the General Assembly. The General Assembly would
49 establish the process but have no role in the revising of districts."

50 **SECTION 1.(f)** If a majority of votes cast on the question are in favor of the
51 amendments set out in subsections (a), (b), (c), and (d) of this section, the State Board of Elections

shall certify the amendments to the Secretary of State. The Secretary of State shall enroll the amendments so certified among the permanent records of that office. The amendments set out in subsections (a), (b), (c), and (d) of this section are effective upon certification.

SECTION 1.(g) Chapter 120 of the General Statutes is amended by adding a new Article to read:

"Article 1B.

"Redistricting.

"§ 120-4.50. Definitions.

As used in this Article, unless the context requires otherwise, the following definitions shall apply:

- (1) Census Bureau. – The United States Bureau of the Census.
- (2) Commission. – The North Carolina Citizens Redistricting Commission established pursuant to G.S. 120-4.55.
- (3) Communities of interest. – Contiguous and cohesive populations of persons that share common social, economic, or policy interests. Communities of interest shall not include common relationships with political parties or political candidates. Communities of interest include, but are not limited to, populations that share any of the following characteristics:
 - a. A racial, cultural, geographic, or ethnic identity.
 - b. A common history of marginalization or discrimination.
 - c. Natural resources.
 - d. Excessive damage from past or present natural disasters or pollution.
 - e. An organized decision-making body.
- (4) Congressional districts or plans. – Districts or plans for the House of Representatives of the United States Congress.
- (5) Federal census. – The decennial census required by federal law to be conducted by the Census Bureau in every year ending in zero.
- (6) Final plan. – A plan adopted by the Commission to be used for the purpose of nominating and electing identified representatives. In accordance with Section 25 of Article II of the North Carolina Constitution, final plans shall have the force and effect of acts of the General Assembly.
- (7) Ideal population. – The number determined by dividing the number of members in a plan into the population of the State as reported in the federal census.
- (8) Identified representative. – A member of the Senate or House of Representatives of the General Assembly or a member of the House of Representatives of the United States Congress.
- (9) Legislative districts or plans. – Districts or plans for the Senate and House of Representatives of the General Assembly.
- (10) Metropolitan or micropolitan statistical areas. – Areas of the State defined as metropolitan or micropolitan statistical areas by the Office of Management and Budget of the United States.
- (11) Plan. – A plan for legislative or congressional reapportionment drawn in accordance with Section 25 of Article II of the North Carolina Constitution and this Article.
- (12) Preliminary plan. – An initial plan released by the Commission for public input at the beginning of the redistricting cycle.
- (13) Proposed and alternative plans. – Plans released by the Commission following public input.
- (14) Public office. – Elective State, local, or federal office.

(15) Relative. – An individual who is related to the person in question as father, mother, son, daughter, brother, sister, uncle, aunt, first cousin, nephew, niece, husband, wife, grandfather, grandmother, father-in-law, mother-in-law, son-in-law, daughter-in-law, brother-in-law, sister-in-law, stepfather, stepmother, stepson, stepdaughter, stepbrother, stepsister, half-brother, or half-sister.

"§ 120-4.55. North Carolina Citizens Redistricting Commission.

(a) Establishment. – There is established the North Carolina Citizens Redistricting Commission in accordance with Section 25 of Article II of the North Carolina Constitution to prepare preliminary, proposed, and alternative plans and to adopt final plans for the purpose of nominating and electing members of the Senate and House of Representatives of the General Assembly and the House of Representatives of the United States Congress.

(b) Eligibility. – A resident of North Carolina is eligible to apply for membership on the Commission if that person meets all of the following requirements:

(1) Has been a registered voter in North Carolina with the same party affiliation, or lack thereof, for at least four years prior to commencement of service on the Commission. This requirement does not apply to persons under the age of 25.

(2) Has not contributed during one election cycle cumulatively more than two thousand dollars (\$2,000) to any candidate for public office.

(3) Does not hold public office.

(4) Is not any of the following:

a. A relative of (i) a current member of the General Assembly, (ii) a current member of the North Carolina Council of State, or (iii) a covered person, as defined in G.S. 138A-3(21).

b. A political appointee of the General Assembly.

c. A staff member or legal counsel to the General Assembly.

d. An official of a political party or a consultant or legal counsel to a political party in the United States.

e. A candidate for public office.

(5) Has never done any of the following:

a. Been elected to serve in any of the following:

1. The General Assembly or Congress at the time of or for any period of time during the eight years preceding the date of his or her application.

2. Any other public office at the time of or for any period of time during the four years preceding the date of his or her application.

b. Held a political appointment.

c. Served as an elected or appointed officer of a political party, body, or committee at any level of government in the United States.

d. Served as an officer, employee, or paid consultant of a political party or body or of the campaign or campaign committee of a candidate for public office in the United States.

e. Been convicted of any of the following crimes against a governmental body of the United States or a crime with a direct connection to the crimes:

1. Espionage.

2. Terrorism.

3. Treason.

4. Sabotage.

- 1 5. Sedition.
2 6. Insurrection.
3 (6) Is not a legislative staffer, lobbyist, or legislative liaison.
4 (7) Has not been employed by Congress within 10 years of applying for
5 membership on the Commission.
6 (c) Membership Application; Evaluations. – Any citizen of North Carolina may apply to
7 the State Auditor to be a member of the Commission, according to the following process:
8 (1) The State Auditor shall ensure that applications are available for at least six
9 months beginning in each year ending in nine. The State Auditor shall work
10 with the State Ethics Commission to publicize the application process,
11 including advertising the application period, commission qualifications, and
12 selection process in at least the following ways:
13 a. In the following:
14 1. For at least one month, the 10 media outlets in the State with
15 the highest circulation.
16 2. The main website for all State agencies.
17 3. Appropriate local news broadcasts.
18 4. Media outlets that serve minority communities.
19 b. By distributing paper applications to at least the following:
20 1. At least one percent (1%) of all registered voters in North
21 Carolina. Recipients of paper applications shall be selected
22 randomly but in no event shall more than thirty-three percent
23 (33%) of the recipients be affiliated or not affiliated with a
24 particular party.
25 2. Any registered voter in North Carolina who submits a request
26 for an application.
27 c. To tribal nations located in North Carolina. The State Auditor shall
28 encourage indigenous persons to apply to be a member of the
29 Commission and may coordinate for that purpose with the Division of
30 Indian Affairs of the North Carolina Department of Administration,
31 the North Carolina State Commission of Indian Affairs, and any
32 State-recognized Indian tribe.
33 (2) As part of a person's application, that person shall (i) disclose all relevant
34 relationships and positions and (ii) submit to the State Auditor an attestation
35 that the person is eligible to serve as a member of the Commission pursuant
36 to subsection (b) of this section.
37 (3) The State Auditor shall evaluate applications to ensure they meet the
38 requirements of this section and any other requirements of State law. The State
39 Auditor shall submit all eligible applications to the State Ethics Commission.
40 The State Ethics Commission shall review the eligible applications and submit
41 a diverse group of up to 60 applications to the General Assembly, as follows:
42 a. Applications submitted to the General Assembly shall reflect the
43 State's diverse races, ethnicities, nationalities, sexual orientations,
44 socioeconomic statuses, and geography.
45 b. The State Ethics Commission shall submit no more than 20
46 applications from persons registered in each of the following ways, as
47 reflected by the latest registration statistics published by the State
48 Board of Elections:
49 1. As affiliated with the political party with the highest number
50 of registered affiliates.

- 2. As affiliated with the political party with the second-highest number of registered affiliates.
 3. As not affiliated with either of the two political parties having the highest and second-highest number of registered affiliates.
 - c. If there are fewer than 20 applications from persons registered in accordance with any sub-sub-subdivision of sub-subdivision (3)b. of this subsection, the State Ethics Commission may submit additional eligible applications to the General Assembly, as necessary, to reach a total of 60 applications.
 - (4) Of the pool of candidates submitted to the General Assembly pursuant to subdivision (3) of this subsection, the President Pro Tempore of the Senate, the minority leader in the Senate, the Speaker of the House of Representatives, and the minority leader in the House of Representatives may each strike up to six candidates.
- (d) Appointment. – The Commission shall be composed of 15 members appointed from the pool of candidates that remains after the leaders of the General Assembly have made their strikes pursuant to subdivision (4) of subsection (c) of this section, as follows:
- (1) Two members affiliated in each of the three ways identified in sub-subdivision b. of subdivision (3) of subsection (c) of this section, appointed by the State Ethics Commission, for a total of six members.
 - (2) Three members affiliated in each of the three ways identified in sub-subdivision b. of subdivision (3) of subsection (c) of this section, by the six members appointed pursuant to subdivision (1) of this subsection, for a total of nine members.
 - (3) All appointing authorities shall consider the importance of diversity, as defined in sub-subdivision (c)(3)a. of this section, when making their appointments.
- (e) Term of Office. – The term of office for members of the Commission shall begin on July 1 of each year ending in zero. The members shall continue in office for 10 years until their successors are appointed and qualified.
- (f) Chair. – The position of chair of the Commission shall rotate every three months, following a schedule randomly generated at the beginning of the redistricting cycle. No two members who share the same party affiliation, or lack thereof, shall serve as chair in the same six-month period. No member shall serve as chair more than once in a 12-month period.
- (g) Removal from Office. – A member of the Commission may be removed from office, as follows:
- (1) By the authority that appointed the member for any of the following:
 - a. Failure to comply with G.S. 120-4.65.
 - b. Ineligibility pursuant to subsection (b) of this section.
 - (2) By a vote of at least 11 members of the Commission, including at least one commissioner appointed from the same sub-sub-subdivision of sub-subdivision b. of subdivision (3) of subsection (c) of this section, in open session at any duly held meeting, for any cause that renders the member incapable or unfit to discharge the duties of the office, including neglect of duty or gross misconduct. All Commission member votes on removal of a member pursuant to this subdivision shall be recorded in the record.
- (h) Vacancies. – Any vacancy occurring in the membership of the Commission shall be filled in the manner prescribed in this section by the authority that made the initial appointment. Vacancies shall be filled for the remainder of the unexpired term.
- (i) Stipend. – Members of the Commission shall receive a stipend of one thousand two hundred dollars (\$1,200) for each month that the Commission meets. Beginning July 1, 2040,

and every 10 years thereafter, the Legislative Services Officer shall adjust the monthly stipend amount, as necessary, to ensure that the value of the stipend remains equivalent to the value provided in the previous decade. The Legislative Services Officer shall base this adjustment on the change in the Employment Cost Index (ECI) reported by the United States Bureau of Labor Statistics or an equivalent measure of inflation.

(j) Other Expenses. – Members of the Commission may receive travel and subsistence, as follows:

(1) Members who are officials or employees of a State agency or unit of local government, in accordance with G.S. 138-6.

(2) All other members at the rate established in G.S. 138-5.

"§ 120-4.60. Staff.

(a) The Commission shall be administratively housed in the Legislative Services Office of the General Assembly.

(b) The Commission may exercise its prescribed powers independently of the General Assembly and the Legislative Services Officer. In order to pay expenses incidental to implementing its purposes, the Commission may enter into contracts, own property, and accept funds, grants, and gifts from academic and nonprofit entities that have never contributed to political parties, persons holding public office, or candidates for public office.

(c) The Legislative Services Officer shall provide general administrative support to the Commission, including purchasing, payroll, and similar administrative services.

(d) The Commission shall retain independent staff under contract, including an executive secretary and any additional necessary supporting staff. As a whole, the political affiliations of staff members, or lack thereof, shall be divided approximately into thirds among the two political parties with the highest number of affiliates and among persons unaffiliated with a political party. A person is ineligible to serve as a staff member to the Commission if that person would be ineligible to serve as a member of the Commission pursuant to G.S. 120-4.55(b). Staff shall be selected as follows:

(1) If there are at least three members appointed to the Commission from each sub-sub-subdivision of G.S. 120-4.55(c)(3)b., staff shall be selected by a vote of at least nine members composed of at least three members appointed to the Commission from each sub-sub-subdivision of G.S. 120-4.55(c)(3)b.

(2) If there are not at least three members appointed to the Commission from each sub-sub-subdivision of G.S. 120-4.55(c)(3)b., staff shall be selected by a vote of all of the following:

a. At least three members from each sub-sub-subdivision of G.S. 120-4.55(c)(3)b. with more than three members appointed to the Commission.

b. A unanimous vote from each sub-sub-subdivision of G.S. 120-4.55(c)(3)b. with three or fewer members appointed to the Commission.

"§ 120-4.65. Open meetings and public records.

The Commission shall be subject to the Public Records Act, Chapter 132 of the General Statutes, and the Open Meetings Law, Article 33C of Chapter 143 of the General Statutes, except to the extent those enactments conflict with the below requirements:

(1) Members of the Commission and staff shall not discuss the business of the Commission outside public meetings.

(2) If a member of the Commission violates subdivision (1) of this section, he or she shall place in the public records of the Commission (i) any violating written communication and (ii) a written description of any violating oral communication. The written description of an oral communication must include the name of the parties to the communication, the date and

1 approximate time of the communication, and a description of the nature and
2 substance of the communication.

- 3 (3) The Commission shall provide at least 14 days' notice prior to any meeting in
4 which votes will be taken.

5 **"§ 120-4.70. Redistricting criteria.**

6 All plans shall meet the following goals, in order of priority:

- 7 (1) Each identified representative shall represent, as nearly as may be, an equal
8 number of inhabitants.
9 (2) Compliance with the North Carolina Constitution, State law, the Constitution
10 of the United States, including the equal protection clause of the Fourteenth
11 Amendment, and federal law, to ensure that everyone, including members of
12 minority groups, have an equal opportunity to elect representatives of their
13 choice. A plan shall not diminish or dilute the ability of a member of a
14 minority from electing a candidate of his or her choice, whether alone or in
15 coalition with others.
16 (3) In accordance with subdivisions (1) and (2) of this section, the population for
17 a legislative district shall be within five percent (5%) of the ideal population
18 for that district. Congressional districts shall each have a population that is as
19 nearly equal as practicable to the ideal population but in all cases within
20 one-tenth of one percent (0.1%) of the ideal population for that district.
21 (4) All districts shall be contiguous. Areas that meet only at the points of
22 adjoining corners are not contiguous.
23 (5) Minimizing the number of split communities of interest with the following
24 communities of interest prioritized above all others and in the following order:
25 a. Municipalities and census designated places.
26 b. Precincts.
27 c. Counties.
28 (6) The Commission shall not consider electoral results or political considerations
29 in the preparation of a preliminary, proposed, or alternative plan. In order to
30 ensure that each citizen of the State has substantially equal voting power on
31 the basis of party affiliation, the Commission shall evaluate every proposed
32 and alternative plan after the plan is created to avoid inadvertently diminishing
33 or diluting a voter's opportunity to aggregate with likeminded voters to elect
34 a governing majority based on party affiliation. Before adopting a final plan,
35 the Commission shall revise any plan that it deems to have violated this
36 subdivision to the minimum extent necessary to remedy that violation.
37 (7) Districts shall not favor or disfavor an incumbent, and the Commission shall
38 not consider member residency in the preparation of a plan.
39 (8) To the extent practicable, all districts shall be compact. Districts should not
40 bypass nearby communities for more distant communities.

41 **"§ 120-4.75. Adoption of redistricting plans by the Commission.**

42 (a) Duties. – The Commission shall adopt preliminary, proposed, alternative, and final
43 plans, as follows:

- 44 (1) If there are at least three members appointed to the Commission from each
45 sub-sub-subdivision of G.S. 120-4.55(c)(3)b., plans shall be adopted by a vote
46 of at least nine members composed of at least three members appointed to the
47 Commission from each sub-sub-subdivision of G.S. 120-4.55(c)(3)b.
48 (2) If there are not at least three members appointed to the Commission from each
49 sub-sub-subdivision of G.S. 120-4.55(c)(3)b., plans shall be adopted by a vote
50 of all of the following:

- a. At least three members from each sub-sub-subdivision of G.S. 120-4.55(c)(3)b. with more than three members appointed to the Commission.
- b. A unanimous vote of the members from each sub-sub-subdivision of G.S. 120-4.55(c)(3)b. with three or fewer members appointed to the Commission.

(b) Special Master. – At the beginning of the redistricting cycle, the State Ethics Commission shall submit to the Commission a list of names of persons with an expertise in redistricting who are qualified to serve as a special master. A person is ineligible to serve as a special master if that person would be ineligible to serve as a member of the Commission pursuant to G.S. 120-4.55(b). In the event a plan cannot be adopted pursuant to subsection (a) of this section, the Commission shall appoint a special master from the list of names provided by the State Ethics Commission, and the special master shall draw a plan and submit the plan, along with the rationale for the plan, to the Commission, which shall adopt that plan. The special master shall be appointed as follows:

- (1) If there are at least three members appointed to the Commission from each sub-sub-subdivision of G.S. 120-4.55(c)(3)b., the special master shall be appointed by a vote of at least nine members composed of at least three members appointed to the Commission from each sub-sub-subdivision of G.S. 120-4.55(c)(3)b.
- (2) If there are not at least three members appointed to the Commission from each sub-sub-subdivision of G.S. 120-4.55(c)(3)b., the special master shall be appointed by a vote of all of the following:
 - a. At least three members from each sub-sub-subdivision of G.S. 120-4.55(c)(3)b. with more than three members appointed to the Commission.
 - b. A unanimous vote of the members from each sub-sub-subdivision of G.S. 120-4.55(c)(3)b. with three or fewer members appointed to the Commission.

(c) Time Line. – The Commission shall adopt all plans no later than October 1 of the year following each federal census. Prior to the adoption of a plan, the Commission shall adhere to the following maximum time line:

- (1) Within 30 days of receipt of data from the Census Bureau, the Commission shall hold at least 10 initial public hearings pursuant to G.S. 120-4.80.
- (2) Within 50 days of receipt of data from the Census Bureau, the Commission shall release to the public preliminary plans for revising the congressional and legislative districts.
- (3) Within 70 days of receipt of data from the Census Bureau, the Commission shall hold at least an additional 10 public hearings pursuant to G.S. 120-4.80.
- (4) Within 90 days of receipt of data from the Census Bureau, the Commission shall release to the public all of the following:
 - a. Proposed plans for revising the congressional and legislative districts.
 - b. Alternative plans for revising the congressional and legislative districts.
 - c. A summary of public input provided pursuant to G.S. 120-4.80.
- (5) Within 110 days of receipt of data from the Census Bureau, the Commission shall vote to adopt final plans from its proposed or alternative plans for revising the congressional and legislative districts.
- (6) If the Commission fails to adopt any plan pursuant to subdivision (5) of this subsection, the Commission shall adhere to the following extended maximum time line:

- a. Within 130 days of receipt of data from the Census Bureau, the Commission shall select from the list of names provided by the State Ethics Commission pursuant to subsection (b) of this section a special master to complete the plan or plans. The Commission shall provide the special master with its proposed and alternative plans and all supporting data.
 - b. Within 150 days of receipt of data from the Census Bureau, the special master shall prepare and release a plan and a rationale for any changes from the plans released by the Commission. The special master shall present the plan to the Commission.
 - c. Within 170 days of receipt of data from the Census Bureau, the Commission shall hold at least 10 public hearings pursuant to G.S. 120-4.80 on the plan or plans presented by the special master.
 - d. Within 180 days of receipt of data from the Census Bureau, the Commission shall adopt as a final plan the plan presented by the special master.
- (7) Notwithstanding subdivisions (1) through (6) of this subsection, the Commission may extend the maximum number of days between any event required in this subsection by as many as seven days, up to a total of 40 days over the course of a year, for good cause.

"§ 120-4.80. Public input.

(a) Public Hearings. – For each redistricting cycle, the Commission shall engage in a minimum of 25 public hearings. At least one public hearing shall occur in each of the metropolitan and micropolitan statistical areas of the State. Of the total public hearings, at least 10 hearings shall occur before a preliminary plan is released to the public, and at least 10 hearings shall occur after a preliminary plan is released to the public but before a proposed or alternative plan is released to the public.

(b) Public Input. – To the extent possible, the Commission shall facilitate the ability of members of the public to provide substantive comments on any plan released to the public. To achieve that goal, the Commission shall provide members of the public with all of the following:

- (1) Sufficient time to review any plan released to the public.
- (2) The opportunity to communicate comments, questions, and recommendations on any plan released to the public, at a minimum, in person, online, and through the mail. The Commission shall reserve time at the end of every meeting for in-person and virtual public comment.
- (3) Access to the same demographic data that is used by the Commission in a machine-readable form.
- (4) Access to mapping software and census data in a minimum of 30 public library facilities in the State within 20 days of receipt of that data from the United States Bureau of the Census.
- (5) A public, written response to every substantive comment or recommendation regarding a specific component of a plan released to the public. The response shall address the viability of any recommendation and indicate whether it was or will be incorporated in any other plan. A single response may be provided for one or more comments or recommendations on the same topic.
- (6) At the conclusion of the redistricting process, the Commission shall publish a written evaluation of each final plan, including at least the following information:
 - a. The impact of the plans on the ability of minority groups, including racial minorities, to elect candidates of their choice.

- b. The degree to which the plans preserve or divide communities of interest.
- c. The rationale for changes in the plans from the prior districts.
- d. The impact of the plans on the metropolitan and micropolitan statistical areas of the State.
- e. A summary of the public input received by the Commission on the plans.
- f. An explanation of how the plans comply with the redistricting criteria provided in G.S. 120-4.70.

(7) A website with all of the following information:

- a. Background information on the redistricting process available in at least English and Spanish on the purpose of redistricting and its impact on all communities. The Commission shall provide information in other languages if at least 50,000 people petition the Commission to have a particular language included.
- b. Livestreams and recordings of all public meetings in audio, video, or both formats and minutes from those meetings.
- c. Meeting announcements.
- d. A searchable database of feedback, including public comments, and plans discussed by the Commission. This information shall be made available as soon as practicable after it is generated.
- e. Plans discussed by the Commission and the data used to create those plans.

"§ 120-4.85. Local redistricting.

The General Assembly may by law assign to the Commission the duty to prepare district plans for any county, city, town, special district, and other governmental subdivision, if the governing board of the unit or a court of appropriate jurisdiction so requests."

SECTION 1.(h) Notwithstanding G.S. 120-4.55(e), as enacted by this act, for any redistricting that may occur prior to the return of the 2030 federal census, the term of office for members of the North Carolina Citizens Redistricting Commission shall begin on January 1, 2027, and conclude on June 30, 2030.

PART II. CONFORMING CHANGES

SECTION 2.(a) G.S. 120-2.3 reads as rewritten:

"§ 120-2.3. Contents of judgments invalidating apportionment or redistricting acts.

Every order or judgment declaring unconstitutional or otherwise invalid, in whole or in part and for any reason, any ~~act of the General Assembly plan~~ that apportions or redistricts State legislative or congressional districts shall find with specificity all facts supporting that declaration, shall state separately and with specificity the court's conclusions of law on that declaration, and shall, with specific reference to those findings of fact and conclusions of law, identify every defect found by the court, both as to the plan as a whole and as to individual districts."

SECTION 2.(b) G.S. 120-2.4 reads as rewritten:

"§ 120-2.4. Opportunity ~~for General Assembly to~~ remedy defects.

(a) ~~If the General Assembly enacts a plan apportioning or redistricting State legislative or congressional districts, districts becomes effective, in no event may a court impose its own substitute plan unless the court first gives the General Assembly North Carolina Citizens Redistricting Commission a period of time to remedy any defects identified by the court in its findings of fact and conclusions of law. That period of time shall not be less than two weeks, provided, however, that if the General Assembly is scheduled to convene legislative session~~

~~within 45 days of the date of the court order that period of time shall not be less than two weeks from the convening of that legislative session.~~weeks.

(a1) In the event the ~~General Assembly~~ North Carolina Citizens Redistricting Commission does not act to remedy any identified defects to its plan within that period of time, the court may impose an interim districting plan for use in the next general election only, but that interim districting plan may differ from the previous districting plan ~~enacted by the General Assembly~~ only to the extent necessary to remedy any defects identified by the court.

(b) Notwithstanding any other provision of law or authority of the State Board of Elections under Chapter 163 of the General Statutes, the State Board of Elections shall have no authority to alter, amend, correct, impose, or substitute any plan apportioning or redistricting State legislative or congressional districts other than a plan imposed by a court under this section or a plan ~~enacted by the General Assembly.~~adopted by the North Carolina Citizens Redistricting Commission."

PART III. EFFECTIVE DATE

SECTION 3.(a) If the constitutional amendments proposed by subsections (a), (b), (c), and (d) of Section 1 of this act are approved by the qualified voters as provided in subsections (e) and (f) of Section 1 of this act, the following shall become effective January 1, 2027:

(1) Subsections (g) and (h) of Section 1 of this act.

(2) Part II of this act.

SECTION 3.(b) Except as otherwise provided, this act is effective when it becomes law.